Re: San Mateo ALPR data retained at NCRIC

From Brian C < >
To <jmaravillas@cityofsanmateo.org>
Cc Ed Barberini <ebarberini@cityofsanmateo.org>, Bahareh Abdollahi <babdollahi@cityofsanmateo.org>
Date 2026-11-09 21:13

Acting Chief Maravillas,

Chief Barberini's auto-reply says he is out until November 16 and directs urgent matters to you, so I'm forwarding my November 4 message to him below.

Question 6 is the urgent part. Chief Barberini's September 17 reply to me relayed NCRIC's description of that audit log: "an audit log file spanning June – November 2023 contains six entries of queries by San Mateo Police Department, including the officer's email address, plate searched, and associated case number." So NCRIC had the log in hand as recently as September. Its last entries reach the MOU's three-year minimum on December 1. Will the department ask NCRIC to preserve that log, and any other records of SMPD data it held, before then? Please let me know by Wednesday, November 18.

Questions 1 through 5 can wait for the Chief's return. For those, I'll move the reply date to Monday, November 23.

–brian

On 2026-11-04 23:27, Brian C wrote:

> Chief Barberini,
>
> Upon reviewing some recent public records responses, it has become apparent to me that the department has mischaracterized my September 11 message about NCRIC sharing. The issue was never the six SMPD searches in NCRIC's published audit log. It is this:
>
> At least 3.14 million San Mateo plate reads were copied out of Flock into a separate NCRIC database in a single 30-day period, in an arrangement that ran for nearly three years. These are records of where San Mateo residents and visitors drove. Accounts at ICE, DHS and the FBI were searching that database, as NCRIC's audit log shows, alongside six searches by SMPD officers. The log only records who searched it; the exposure is the copy of the plate data itself, and federal accounts' access to it. California law limits ALPR sharing to public agencies, which the Attorney General reads as excluding federal agencies. SMPD's own SOP 205 required quarterly audits of NCRIC use. The department has produced no record of auditing that copy, limiting who could reach it, or having it deleted.
>
> Under SMPD's MOU with NCRIC, that control stayed with SMPD even while NCRIC held the data:
> - Data Sharing: SMPD decided "within its sole discretion, which data records are to be shared," and any data it "later declares should not be shared, shall be withdrawn by all Hosts from all NCRIC-DSP Systems within 48 hours, including deletion of any replications of the data."
> - Security Requirements: "All Member Agencies and Hosts agree to enforce and maintain security, retention, and purge requirements for the information shared."
> - Information Ownership and Release: SMPD remains "the official custodian of all information contributed."
>
> If SMPD had been following its own policies, then it would also hold its own records of who searched that database. SOP 205 has required quarterly audits of "end-users usage of the NCRIC platform" since at least 2019, and says "Our Department can obtain such data for the purposes of an audit directly from the NCRIC." The department did exactly that in 2019 and 2020: it has produced six quarterly NCRIC audit memos and a 2020 NCRIC search log in the same format as the 2023 log. Civil Code § 1798.90.52 also requires an ALPR operator that "provides access" to its ALPR information to keep a record of that access, including who searched, their organization, what they searched and why. And Government Code § 34090 bars destroying city records without a Council resolution and the City Attorney's written consent. So even if NCRIC no longer has its log, SMPD should have these records. If the department does not have them, please explain why it has neglected its own policies, and what it will do to correct this going forward.
>
> The details:
>
> - The 3.14 million figure comes from NCRIC's own platform dashboard, included in the published files. That many SMPD reads arrived in its last month on record alone, in late 2023. The arrangement ran for nearly three years, so the total was presumably far higher, but the published files only show a subset of the totals.
> - These are NCRIC's records by NCRIC's own account. In its September 15 takedown notice to GitHub, NCRIC wrote "This project belongs to us" and swore "under penalty of perjury, that the information in this notification is accurate."
> - SOP 205 has said since February 2021 that the department partners with NCRIC "to store the ALPR data we collect with PIPs and Flock." NCRIC's answer to you confirms the mechanism: "replication and/or federation of data from the original vendor location, such as Flock" before 2024.
> - Those copies sat outside Flock's 30-day retention, and searches against them never appear in SMPD's Flock audit log.
> - NCRIC says it is "not in possession of any repositories of ALPR data from any agency." That describes today, not when SMPD's data was removed.
>
> My questions:
>
> 1. Which SMPD datasets did NCRIC hold, for what period, and with what retention? When were they deleted, and does SMPD have any record confirming it?
> 2. Where are the NCRIC usage data and audit results from SOP 205's quarterly NCRIC audits for 2021 through 2023? If they were destroyed, under what Council resolution and City Attorney consent?
> 3. Where is SMPD's record, under Civil Code § 1798.90.52, of the access it provided to NCRIC's users, including the federal accounts?
> 4. Has SMPD ever made the declaration under the MOU's Data Sharing section that requires NCRIC to delete replications of its data within 48 hours? Deactivating SMPD's NCRIC accounts on May 19 does not appear to be that declaration.
> 5. SOP 205, revised November 2025, still says SMPD partners with NCRIC "to store the ALPR data we collect with PIPs and Flock." Was that accurate when it was revised?
> 6. The MOU requires NCRIC to keep "an audit log … for a period of no less than three years to record user access to shared data." Has SMPD obtained that log for its data, and will it ask NCRIC to preserve it? I requested this log from the department in W013470 on September 18, and was told the department had no records of it. If NCRIC destroyed that log before the three years were up, what recourse is SMPD pursuing against NCRIC for that breach of the agreement?
>
> Please reply by Wednesday, November 18. Question 6 is time-sensitive: the last entries in NCRIC's 2023 log reach the MOU's three-year minimum on December 1, so I would appreciate an answer on preservation sooner if possible.
>
> If I don't hear back by November 18, I will take that to mean the department has no records answering these questions and has not taken any of the actions they ask about, and I will proceed on that understanding.
>
> -brian